

11	Smith vs. Romero 30-2024-01374547	<u>Motion to Consolidate</u> Defendants Damian Alberto Romero's and Raul Mendenzdelara's Motion to Consolidate Cases is GRANTED in part and DENIED in part. The following cases shall be CONSOLIDATED for purposes of trial only: 1. <i>McKayla Smith v. Damian Alberto Romero, et al.</i>, Case No. 30-2024-01374547; 2. <i>Bryan Nguyen v. Damian Alberto Romero, et al.</i>, Case No. 30-2025-01465733; 3. <i>Ashley Soriano v. Damien Alberto Romero, et al.</i>, Case No. 2025-01466287; 4. <i>Chantal Abril Hernandez, et al. v. Damian Alberto Romero</i>, Case No. 2025-01499182. <i>McKayla Smith v. Damian Alberto Romero, et al.</i>, Case No. 30-2024-01374547 shall be the lead case. The court VACATES the Case Management Conference in <i>Ashley Soriano v. Damien Alberto Romero, et al.</i>, Case No. 2025-01466287. The court SETS a Jury Trial for November 9, 2026 at 10:30 a.m. in Department N15 in <i>Ashley Soriano v. Damien Alberto Romero, et al.</i>, Case No. 2025-01466287. The estimated length of trial: 7-10 Days Parties and counsel are ordered not to schedule any other matters at the same time as the anticipated trial. Parties and counsel shall abide by Local Rule 317 prior to trial. The court clerk is ordered to file a copy of the minute order with this ruling in all of the above cases (See Cal. Rules of Court, rule 3.350(c).) <u>Pending Motion</u> Defendants Damian Alberto Romero and Raul Mendenzdelara (Moving Defendants) move to consolidate the following cases for all purposes: 1. <i>McKayla Smith v. Damian Alberto Romero, et al.</i>, Case No. 30-2024-01374547; 2. <i>Bryan Nguyen v. Damian Alberto Romero, et al.</i>, Case No. 30-2025-01465733; 3. <i>Ashley Soriano v. Damien Alberto Romero, et al.</i>, Case No. 2025-

01466287;

4. *Chantal Abril Hernandez, et al. v. Damian Alberto Romero*, Case No. 2025-01499182.

Standard for Consolidation

"When actions involving a common question of law or fact are pending before the court, it may order a joint hearing or trial of any or all the matters in issue in the actions". (Code Civ. Proc., § 1048, subd. (a).) The court may also "order all the actions consolidated and it may make such orders concerning proceedings therein as may tend to avoid unnecessary costs or delay." (*Ibid.*)

California Rules of Court Rule 3.350 sets forth the requirements for a motion to consolidate:

(1) A notice of motion to consolidate must:

- (A) List all named parties in each case, the names of those who have appeared, and the names of their respective attorneys of record;
- (B) Contain the captions of all the cases sought to be consolidated, with the lowest numbered case shown first; and
- (C) Be filed in each case sought to be consolidated.

(2) The motion to consolidate:

- (A) Is deemed a single motion for the purpose of determining the appropriate filing fee, but memorandums, declarations, and other supporting papers must be filed only in the lowest numbered case;
- (B) Must be served on all attorneys of record and all nonrepresented parties in all of the cases sought to be consolidated; and
- (C) Must have a proof of service filed as part of the motion.

(Cal. Rules of Court, rule 3.350(a).)

The purpose of consolidation is to enhance trial court efficiency (i.e., to avoid unnecessary duplication of evidence and procedures), and to avoid the substantial danger of inconsistent adjudications (i.e., different results when matters are tried before different juries or judges). (Weil & Brown, Cal. Prac. Guide: Civ. Proc. Before Trial, 12:340 (The Rutter Group 2012).)

There are two types of consolidation, a complete consolidation which results in a single action and a consolidation of separate actions for trial. (See *Sanchez v. Superior Court* (1988) 203 Cal.App.3d 1391, 1396.)

When cases are consolidated completely, which is usually ordered where the parties are identical and the causes could have been joined, the

	pleadings are considered merged, one set of findings is made, and one judgment is rendered. (<i>Id.</i>) Cases may also be consolidated for purposes of trial only. (<i>Id.</i>) When this occurs, the pleadings, verdicts, findings and judgments are kept separate and the actions are simply tried together for the sake of convenience and judicial economy. (<i>Id.</i>) Each case presents its own facts and circumstances, but the court generally considers the following: (1) timeliness of the motion (i.e., whether granting consolidation would delay the trial of any of the cases involved, or whether discovery in one or more of the cases has proceeded without all parties present); (2) complexity (i.e., whether joining the actions involved would make the trial too confusing or complex for a jury); and (3) prejudice (i.e., whether consolidation would adversely affect the rights of any party. (Weil & Brown, Cal. Prac. Guide: Civ. Proc. Before Trial (Rutter Group 2022) ¶ 12:362.) "[A]ll that the moving party need show is that the issues in each case are basically the same, and that 'economy and convenience' would be served by a joint trial. (Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2023) ¶ 12:359, citing <i>Jud Whitehead Heater Co. v. Obler</i> (1952) 111 Cal.App.2d 861, 867.) "Even where the conditions of same parties and joinable causes are not present, the similarity of basic issues and most of the evidence may justify a single trial of the separate actions." (4 Witkin, California Procedure (6th ed. 2023) Pleading, § 361.) <u>Four Actions</u> Here, the four actions that Moving Defendant seek to consolidate arise from the same incident and, thus, involve some common questions of law and fact. Thus, judicial economy and convenience will be served by consolidating them for purposes of trial. On the other hand, consolidating all four actions for all purposes, which would involve merging the case files for all four actions would make the case files unmanageable, especially as some of the actions have been pending for more than two years. In addition, the four actions may not share common questions of law and fact as to some pretrial issues, such as discovery. Therefore, the court will grant the motion to consolidate for purposes of trial only. Three of the four actions have already been set for trial on November 9, 2026 at 10:30 a.m. in Department N15. The remaining action, <i>Ashley Soriano v. Damien Alberto Romero, et al.</i>, Case No. 2025-01466287, is ready to be set for trial.
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		Therefore, in order to implement the consolidation of the cases, the court will set trial in <i>Ashley Soriano v. Damien Alberto Romero, et al.</i>, Case No. 2025-01466287 for November 9, 2026 as well. If any parties believe that they require additional time to prepare for the consolidated trial, they may either submit a stipulation and order that includes all of the parties, or they may file an <i>ex parte</i> application after giving notice to all of the parties. Moving Defendants shall give notice of this ruling.
12	DeVie vs. County of Orange 30-2024- 01423397	<u>Motion to Set Aside</u> Plaintiff Twila DeVie's and Ava DeVie's Motion for an Order to Set Aside Dismissal [sic] Plaintiffs' Counsel's Mistake, Inadvertence, Surprise, or Excusable Neglect, or in the Alternative Fault of Plaintiffs' Counsel is GRANTED. The dismissal entered in this case on August 7, 2025 is VACATED. Plaintiffs Twila DeVie and Ava DeVie are ORDERED to serve all named Defendants with the Complaint within 60 days of this ruling. The court SETS a Case Management Conference and Order to Show Cause re: Sanctions/Dismissal re: Failure to Serve for October 22, 2026 at 10:00 a.m. in Department N15. <u>Pending Motion</u> Plaintiffs Twila DeVie and Ava DeVie move to set aside the dismissal entered in this case on August 7, 2025. (See ROA #28.) <u>Standard to Set Aside</u> The Civil Procedure Code grants the court discretion to "relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect." (Code Civ. Proc., § 473, subd. (b).) Section 473 may be used to seek to set aside the dismissal of an action. (See <i>Chase v. Superior Court of Los Angeles County</i> (1962) 210 Cal.App.2d 872, 875 [dismissal "may be directly attacked under section 473 of the Code of Civil Procedure by a party to the action on the grounds of mistake, inadvertence, surprise, or excusable neglect or that it is void"]; see also <i>Gee v. Greyhound Lines, Inc.</i> (2016) 6 Cal.App.5th 477, 486-489 [plaintiff may seek "relief under Section 473 from a dismissal for failure to pay the transfer fee"].) "Because the law strongly favors trial and disposition on the merits, any doubts in applying section 473 must be resolved in favor of the party